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|   |                                                                                        | <p>served on 6/9/26 at least nine (9) court days before the continued hearing.</p> <p>No further briefing will be permitted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 7 | <p><b>25-01524757</b></p> <p><b><i>Iserhien vs. Irvine Holding Company LLC</i></b></p> | <p><b>Motion for Order to Stay Proceedings</b></p> <p>Defendant The Irvine Company LLC’s motion to compel plaintiff Darya N. Iserhien to submit her claims to binding arbitration, and to stay the action pending arbitration is GRANTED.</p> <p>Defendants move to compel arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.)</p> <p><u>Federal Arbitration Act (“FAA”):</u></p> <p>The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) Here, the agreement to arbitrate expressly states, “The Lease and this arbitration and class action waiver Addendum shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision.” (Matosic Decl., ¶ 5, Ex. A.) Defendant has also shown it engages in interstate commerce. Specifically, Defendant leases apartments to out-of-state residents and its marketing efforts include nationwide internet advertising through social media websites and internet search engines. (Matosic Decl., ¶¶ 3, 4.) Therefore, the FAA applies.</p> <p>A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>)). “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (<i>Ibid.</i>)</p> <p><u>Existence of a valid agreement to arbitrate:</u></p> <p>Plaintiff entered into a lease agreement on September 12, 2022. The lease agreement includes an Addendum for Arbitration of Disputes and Class Action Waiver which provides:</p> <p>“Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this</p> |

provision to arbitrate ('Claim' or 'Claims') shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator."

(Matosic Decl., ¶ 5, Ex. A.) Plaintiff does not dispute signing the Agreement. Therefore, Defendant has sufficiently shown the existence of an agreement to arbitrate.

Delegation clause:

The agreement to arbitrate contains a delegation clause which states: "The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable." (Matosic Decl., ¶ 5, Ex. A.)

" 'Although threshold questions of arbitrability are ordinarily for courts to decide in the first instance under the FAA [citation], the "[p]arties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement." ' [Citation.] The examination of who has the primary power to determine arbitrability is conducted, at least initially, through the prism of state law. [Citation.] [¶] 'There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.' [Citation.] The 'clear and unmistakable' test reflects a '*heightened* standard of proof' that reverses the typical presumption in favor of the arbitration of disputes. [Citation.]" (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 891–892.)

Here, the delegation clause is clear and unmistakable. Although Plaintiff does not contend the delegation clause is revocable under state contract defenses, Plaintiff argues the arbitration provisions are unenforceable as contrary to public policy. Specifically, Plaintiff argues that under Civil Code section 1953, subdivision (a)(4), any provision in a residential lease "by which the lessee agrees to modify or waive" her "procedural rights in litigation in any action involving his rights and obligations as a tenant" shall be "void as contrary to public policy." (Civ. Code, § 1953, subd. (a)(4).)

However, the FAA preempts section 1953. "[T]he FAA preempts a state rule that discriminates against arbitration by discouraging or prohibiting the formation of an arbitration agreement." (*Chamber of Commerce of the United States of America v. Bonta* (9th Cir. 2023) 62 F.4th 473, 483, 486 (*Chamber of Commerce*)). "[A] state rule discriminates against arbitration even if it does not expressly refer to arbitration, but instead targets its defining characteristics." (*Id.*, at p. 486.) This includes "a rule that prohibits an agreement ... that waives the right to a jury trial...." (*Id.* at p. 483.) Further, a federal court has held that "FAA preemption applies, overriding California state arbitration laws, including California Civil Code section 1953," in a residential-lease dispute. (*Brooks v. Greystar*

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|   |                                                                     | <p><i>Real Estate Partners, LLC</i> (S.D. Cal., Mar. 31, 2025, No. 23CV1729-LL-VET) 2025 WL 958598, at *2.)</p> <p>Therefore, the delegation clause is enforceable and arbitrability of Plaintiff's claims is a question for the arbitrator.</p> <p><u>Non-Signatory Status of other parties:</u><br/>Plaintiff contends arbitration should not be compelled because her daughter who is a minor has also filed a separate complaint against Defendant for her personal injuries and is not bound by the arbitration agreement. Plaintiff intends to file a motion to consolidate both cases. The daughter's separate lawsuit is not before the court and is not a basis to deny arbitration.</p> <p>The motion is GRANTED, and the action is stayed, pending the completion of arbitration.</p> <p>Defendant to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 9 | <p><b>23-01317622</b></p> <p><b>Miller vs. Anaheim Marriott</b></p> | <p><b>Motion for Summary Judgment and/or Adjudication</b></p> <p>Defendants Marriott Hotel Services, LLC and Marriott International, Inc.'s Motion for Summary Judgment is DENIED.</p> <p>Plaintiff's objections nos. 2, 6, and 9 to Exhibits A, B, and D are granted. "Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law." (Evid. Code, § 1400.) Defendant submits Exhibits A and D through John Kalinski's declaration. Kalinski only avers to being the Defendant's area general manager and the Exhibits A and D are true and correct copies of the documents. Kalinski fails to provide any context which the Court may use to determine Kalinski would know the documents are what he claims they are. Similarly, Exhibit B is submitted through Roger Bracken's declaration. Bracken's declaration also provides insufficient information to authenticate the document. Thus, Plaintiff's objections are sustained.</p> <p>The Court declines to rule on Plaintiff's remaining objections as they are not dispositive to the Motion.</p> <p>"A valid release precludes liability for risks of injury within the scope of the release." (<i>Anderson v. Fitness International, LLC</i> (2016) 4 Cal.App.5th 867, 877). Defendants rely on the waiver contained in the Waiver and Appearance Agreement which was attached as Exhibit B. (UMF 4-8.) However, Exhibit B is not admissible, thus, Defendants have failed to show the existence of a valid release. Therefore, Defendants' argument the waiver precludes liability is unsupported by admissible evidence.</p> <p>"[A]s a general rule, a landowner does not have a duty to remedy or warn of an obviously dangerous condition on his or her property."</p> |